

Complaint Report (CCRB)

CCRB Case No :	201806951	C/V Report Date :	Thu, 08/23/2018 09:47 AM
Complaint Type :	CCRB	Investigator :	Patrick Yu
Complaint Made At :	CCRB	Ref. No	
Received Date (CCRB) :	Thu, 08/23/2018 09:47 AM	Mode :	Phone
Incident Date(s) :	Tue, 08/21/2018 9:56 PM		
Place of Occurrence:	[REDACTED]	Precinct:	52
Location :	Street/highway	Boro:	Bronx
Reason for Initial Contact :	EDP aided case		
Charges:	Arrest - other violation/crime		

Complainant/Victim Details

Name:	[REDACTED]	Type:	Comp/Victim
Address:	[REDACTED]		
Contacts:	[REDACTED]	[REDACTED]	
	[REDACTED]	[REDACTED]	
	[REDACTED]		
Gender:	[REDACTED]	Ethnicity:	[REDACTED]
Person Assisting:		Date of Birth:	[REDACTED]

Name:	[REDACTED]	Type:	Victim
Address:	[REDACTED]		
Contacts:	[REDACTED]	[REDACTED]	
	[REDACTED]	[REDACTED]	
	[REDACTED]		
Gender:	[REDACTED]	Ethnicity:	[REDACTED]
Person Assisting:		Date of Birth:	[REDACTED]

Injury Details:	<u>Type of Injury</u>	<u>Description</u>
	Other Injury	Abrasions to shoulders and bloodied mouth

Name:	[REDACTED]	Type:	Comp/Victim
Address:	[REDACTED]		
Contacts:	[REDACTED]	[REDACTED]	
	[REDACTED]	[REDACTED]	
	[REDACTED]		
Gender:	[REDACTED]	Ethnicity:	[REDACTED]
Person Assisting:		Date of Birth:	[REDACTED]

Officer(s) Named in Complaint

Rank	Officer	S/W Officer	Tax No	Race	Cmd	Allegations/Board Dispositions
	An officer	Subject Officer				Threat of force (verbal or physical) - (A) Unfounded
	An officer	Subject Officer				Property damaged - (A) Officer(s) Unidentified
	An officer	Subject Officer				Word - (D) Officer(s) Unidentified
	An officer	Subject Officer				Word - (D) Unfounded
	An officer	Subject Officer				Action - (D) Officer(s) Unidentified
POM	Omar Carrascotatis	Subject Officer		Hispanic	052	Physical force - (pushed/shoved/threw) - (F) Exonerated
POM	Omar Carrascotatis	Subject Officer		Hispanic	052	Word - (D) Exonerated
POM	Omar Carrascotatis	Subject Officer		Hispanic	052	Interference with recording - (A) Unsubstantiated
POM	Marlon Wright	Subject Officer		Black	052	Physical force - (pushed/shoved/threw) - (F) Exonerated
POM	Marlon Wright	Subject Officer		Black	052	Threat of force (verbal or physical) - (A) Substantiated (Command Lvl Instructions)
POM	Marlon Wright	Subject Officer		Black	052	Restricted Breathing - (F) Unsubstantiated
POM	Salvator Maida	Subject Officer		White	052	Physical force - (pushed/shoved/threw) - (F) Exonerated
POF	Jessica Riverasantana	Subject Officer		Hispanic	052	Handcuffs too tight - (F) Unsubstantiated
POF	Jessica Riverasantana	Subject Officer		Hispanic	052	Restricted Breathing - (F) Alleged Victim Unavailable
POM	Brandon Gembecki	Subject Officer		White	052	Word - (D) Exonerated
POM	Brandon Gembecki	Subject Officer		White	052	Word - (D) Substantiated (Command Lvl Instructions)
POM	Brandon Gembecki	Subject Officer		White	052	Word - (D) Substantiated (Command Lvl Instructions)
DT3	Sheldon Smith	Subject Officer		Black	273	Word - (D) Unsubstantiated
POM	Michael Pisano	Witness Officer		White	052	

Initial Complaint Narrative

The following narrative was obtained during an intake call with [REDACTED] on August 23, 2018: On August 21, 2018, at approximately 7PM, at [REDACTED] in the Bronx, [REDACTED]'s mother called to 911 for assistance with [REDACTED]'s [REDACTED]-year old brother, [REDACTED]. The first set of officers arrived with EMS. [REDACTED] was noncompliant and refused to be placed in restraints. At some point, additional officers arrived and [REDACTED] was present on the scene. In the courtyard of the location, PO1 pushed [REDACTED] once from behind, then PO1 pushed [REDACTED] again by the front of his body, and PO1 stated, "Back the fuck up. Get the fuck out of here. Go over there." [REDACTED] told PO1 that he had just pushed him twice. In response, PO1 said, "Shut the fuck up and go that way." [REDACTED] told PO1 that he did not have to go anywhere and that he was trying to calm PO1 down. PO1 pushed [REDACTED] again and PO1 stated, "Yo, what the fuck I said? You're in my way. Get the fuck out of here." In response, [REDACTED] said, "Aight, you know what? I got something for you." [REDACTED] subsequently took his cellphone out and began recording. [REDACTED] asked PO1 for his "badge number and everything." PO1 told [REDACTED] that he could record. As [REDACTED] had his camera out, PO1 took his flashlight and placed it in front of [REDACTED]'s cellphone preventing [REDACTED] from recording PO1's shield number. PO1 said, "You see who I am. Yeah, now get the fuck out of here. Go that way." Additional officers, including "DT's" and "Homicide" arrived. At some point, a detective (PO3), pulled [REDACTED] to the side. [REDACTED] stated that he was mad and screaming at the time. PO3 told [REDACTED] that he could record, but he advised [REDACTED] to not hover and to not harass. [REDACTED] continued to record and he asked an officer (who he did not specify during his statement), "Who are you," and told this officer to identify himself. The officers ultimately handcuffed [REDACTED] and lifted [REDACTED] up. [REDACTED] stated that the officers lifted [REDACTED]'s arms in the air behind his body and picked up from the ground. [REDACTED] observed that [REDACTED] had a bloodied mouth. During the incident, [REDACTED] said, "Yo, they bust your lip. Nah." [REDACTED] explained that there were two staircases and [REDACTED] was walking down one side of the staircase with the officers while other officers escorted [REDACTED] down the opposite staircase. As [REDACTED] was walking down, he held his phone higher as he stood next to PO3. PO2 subsequently approached [REDACTED] from the crowd of officers, stretched his arm out, and slapped [REDACTED]'s phone out of his hand causing it to fall. [REDACTED] stated that his phone's screen was scratched and the phone case was damaged as a result of the fall. [REDACTED] stated that this occurred immediately prior the first landing of the staircase. [REDACTED] picked up his phone and continued walking down to the second landing to get to the sidewalk. [REDACTED] complained to PO3 about PO2's actions and asked PO3 for his information. During the incident, [REDACTED] raised his phone up to show the damages and said, "Look, my phone is damaged. He just slapped my phone out of my hand." At some point, [REDACTED] saw PO1 "flinch" and jump as PO1 stood on the lower level of the stair case. [REDACTED] stated that it appeared as if PO1 tried to make it look as if [REDACTED] tried to assault him. PO1 subsequently turned around, charged towards [REDACTED] and said, "Yo, what the fuck I told you. I told you once last time. Get the fuck out of here." [REDACTED] stated that he tried to move towards the officers to record and he was screaming as he requested for the officers' footage. At some point, the detective (PO4) who [REDACTED] identified as the officer that arrested him told [REDACTED] "Yo, get the fuck out of here. Leave the scene." [REDACTED] refused to leave because his mother was there and he still wanted the officers' information. PO4 told [REDACTED] "You're just being an asshole. Let's go, let's go." PO4 dragged [REDACTED] towards the street and [REDACTED] was ultimately placed in handcuffs. PO4 told [REDACTED] that he had failed to disperse. [REDACTED] stated that another individual was also arrested during the incident. [REDACTED] was transported to Montefiore Hospital and [REDACTED] was brought to the 52nd stationhouse. [REDACTED] stated that he was brought to the courthouse because he had an open warrant for an unrelated incident. [REDACTED] was released with a summons for disorderly conduct and a summons for unlawful possession of marijuana. [REDACTED] stated that there were multiple officers present during the incident. [REDACTED] only described two of the officers during the incident. *PO1: male, Hispanic, about 5 feet 5 inches tall, approximately 180-200 pounds, spiky black hair, in uniform, from the 52nd Precinct. *PO2: male, white, about 6 feet 2-3 inches tall, approximately 200 pounds, high-top fade and black hair, in uniform, from the 52nd Precinct. On August 22, 2018, at approximately 2:30AM, as [REDACTED] was being released from the 52nd Precinct stationhouse, an officer (PO5), did not let [REDACTED] retrieve his property because he did not say "please." *PO5: female, white, reddish hair, freckles, in uniform, at the desk.

Witness

Name of Witness:

Address:

Contacts:

Gender :

Ethnicity:

Date of Birth :

Name of Witness:		
Address:		
Contacts:		
Gender :		Ethnicity:
Date of Birth :		
Name of Witness:		
Address:		
Contacts:		
Gender :		Ethnicity:
Date of Birth :		
Name of Witness:		
Address:		
Contacts:		
Gender :		Ethnicity:
Date of Birth :		